

HOUSE BILL NO. 167

INTRODUCED BY J. DARLING, W. MCKAMEY, S. VANCE

A BILL FOR AN ACT ENTITLED: "AN ACT REMOVING THE REQUIREMENT TO POST ABSENTEE LISTS AT POLLING LOCATIONS; AMENDING ~~SECTION~~ SECTIONS 13-13-233, AND 13-13-234, MCA; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 13-13-233, MCA, is amended to read:

"13-13-233. Issuing and recording absentee ballots -- certificate to election judges. (1) Absentee ballots must be official numbered paper ballots beginning with ballot number 1 and following consecutively according to the number of applications for absentee ballots.

(2) The election administrator shall keep a record of all absentee ballots issued.

(3) ~~When the election administrator delivers the voted absentee ballots pursuant to 13-13-232(1),~~
the THE election administrator shall KEEP A RECORD OF THE FOLLOWING INFORMATION SUBJECT TO THE APPROPRIATE RETENTION SCHEDULE ~~also provide a certificate stating:~~

(a) the ballot numbers of the absentee ballots mailed or transmitted pursuant to 13-13-214, 13-21-106(3)(a), and 13-21-224, delivered pursuant to 13-13-229, or marked in person pursuant to 13-13-222;

(b) the number of ballots to be reserved for late absentee voting pursuant to 13-13-211(2); and

(c) the names of the electors within the precinct to whom the ballots were provided.

(4) ~~The chief election judge shall post in a conspicuous location at the polling place a list of the names of electors appearing on the certificate required under subsection (3)."~~

SECTION 2. SECTION 13-13-234, MCA, IS AMENDED TO READ:

"13-13-234. Duty of election judges -- pollbook. (1) The election judges, at the opening of the polls, shall:

(a) note on the pollbook opposite the appropriate ballot numbers the fact that the ballots were

1 issued as absentee ballots; and

2 (b) reserve the numbers for electors who may vote late under 13-13-211(2).

3 (2) The election judges shall insert only the name of the elector entitled to each particular number
4 according to ~~the certificate provided by the election administrator pursuant to 13-13-233(3)~~ and the number of
5 the elector's ballot."

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7 NEW SECTION. **Section 3. Effective date.** [This act] is effective on passage and approval.

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